

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sasha Linney	Team: Team # 2	CCRB Case #: 200711289	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 08/06/2007 11:25 AM	Location of Incident: Claremont Park	18 Mo. SOL 2/6/2009	Precinct: 44		
Date/Time CV Reported Mon, 08/06/2007 3:04 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/06/2007 3:04 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM William Santana	01020	931152	044 PCT
2. POM Robert Klein	28772	936874	044 PCT
3. POM Carlos Mena	22808	921581	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM William Santana	Abuse: Officer William Santana stopped § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . POM Robert Klein	Abuse: Officer Robert Klein stopped § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . POM Carlos Mena	Abuse: Officer Carlos Mena stopped § 87(2)(b) and § 87(2)(b)	C . Unsubstantiated
D . POM Carlos Mena	Abuse: Officer Carlos Mena searched § 87(2)(b)	D . Unsubstantiated
E . POM Robert Klein	Abuse: Officer Robert Klein searched § 87(2)(b)	E . Unsubstantiated
F . POM William Santana	Force: Officer William Santana used physical force against § 87(2)(b)	F . Unsubstantiated
G . POM William Santana	Discourtesy: Officer William Santana acted rudely toward § 87(2)(b)	G . Unsubstantiated
H . POM William Santana	Off. Language: Officer William Santana made remarks to § 87(2)(b) based upon the sexual orientation of § 87(2)(b) and § 87(2)(b)	H . Unsubstantiated
I . POM William Santana	Discourtesy: Officer William Santana spoke obscenely to § 87(2)(b)	I . Unsubstantiated
J . POM William Santana	Abuse: Officer William Santana threatened to arrest § 87(2)(b)	J . Unsubstantiated
K . POM Carlos Mena	Abuse: Officer Carlos Mena threatened to arrest § 87(2)(b)	K . Unsubstantiated

Synopsis

On August 6, 2007 at approximately 11:25 AM, § 87(2)(b) and § 87(2)(b) were sitting in Claremont Park in the Bronx when Officer William Santana, Officer Robert Klein, and Officer Carlos Mena of the 44th Precinct Street Narcotics Enforcement Unit stopped them on the suspicion that they had engaged in a hand-to-hand drug transaction (allegations A, B and C). Officer Mena allegedly searched § 87(2)(b) while Officer Klein allegedly searched § 87(2)(b) (allegations D and E); the officers did not find contraband. According to § 87(2)(b) the officers were about to leave when § 87(2)(b) and § 87(2)(b) complained about the stop. Officer Santana allegedly returned to § 87(2)(b) and pushed him (allegation F). § 87(2)(b)'s wallet fell from his hands and Officer Santana allegedly threw it 10 to 20 feet away (allegation G). Officer Santana allegedly told § 87(2)(b) to "Get the fuck out, fucking faggot!" and made other comments about § 87(2)(b)'s and § 87(2)(b)'s apparent sexual orientation (allegations H and I). Officers Santana and Mena then allegedly threatened to arrest § 87(2)(b) for "bad behavior" if he did not apologize to the officers (allegations J and K).

§ 87(2)(g)

It is therefore recommended that allegations A through K be Unsubstantiated.

This case was originally assigned to Investigator Connie Higgins-Beer. It was reassigned to the undersigned investigator on September 17, 2007.

Summary of Complaint

§ 87(2)(b) filed this complaint via telephone in Spanish at 3:00 PM on August 6, 2007, the date of the incident (Encl. 5a-b). § 87(2)(b) was interviewed at the CCRB in Spanish on August 21, 2007 (Encl. 6a-f). He viewed a police officer photo array at the CCRB on October 2, 2007 (Encl. 7a-m). § 87(2)(g)

§ 87(2)(b) stated that on the morning of August 6, 2007, he left his home, apartment 6A of 1655 Monroe Avenue in the Bronx, and walked through Claremont Park on his way to the subway on 170th Street. § 87(2)(b) and his boss gave him the whole day off. § 87(2)(b) was wearing a white shirt with horizontal red and yellow stripes and blue jeans. Approximately 3 minutes after leaving his apartment, he encountered his friend, "§ 87(2)(b) (legal name § 87(2)(b) Puerto Rican male, 42 or 43 years old), whom he had known for 18 years but only knew him as "§ 87(2)(b). He subsequently learned § 87(2)(b)'s legal name and provided it during his in-person interview. § 87(2)(b) was wearing jeans and a shirt which might have been white. § 87(2)(b) had not stopped to talk to anyone before meeting § 87(2)(b), § 87(2)(b) and § 87(2)(b). They sat down approximately 50 yards inside the park, near Mount Eden Parkway and Monroe Avenue.

§ 87(2)(b) and § 87(2)(b) talked for approximately 20 minutes. It was approximately 11:10 AM. A red car containing three uniformed police officers approached from the direction of the bathrooms and stopped near them. The passenger side of the car was nearer to § 87(2)(b) and § 87(2)(b) the driver side further from them. PO1 was the driver, a white male, 6'0" tall, 30-35 years old, black hair, 180 to 190 pounds, and clean-shaven, identified by § 87(2)(b) during the photo array and by the investigation as Officer Robert Klein. Two officers were in the back seat. PO2 was sitting behind the passenger seat, closest to § 87(2)(b) and § 87(2)(b). PO2 was a Hispanic male, light-skinned, 5'8" tall, 175 to 180 pounds, and 29-33 years old, identified by the investigation as Officer Carlos Mena. PO3 was sitting behind the driver seat, furthest from § 87(2)(b) and § 87(2)(b). PO3 was a Hispanic male, dark-skinned, wearing a pony tail, 30-36 years old, identified by § 87(2)(b) during the photo array and by the investigation as Officer William Santana.

The officers said, "What's up, guys?" in English; the conversations were in English. § 87(2)(b) replied that he and § 87(2)(b) were sitting there talking. Officer Mena exited the car and approached § 87(2)(b) while Officer Santana exited and walked around the car toward § 87(2)(b) and § 87(2)(b). The officers told them to stand up, and they complied.

Officer Mena searched § 87(2)(b) going directly into § 87(2)(b)'s front and back pants pockets without frisking the outsides first. Officer Mena found four condoms in § 87(2)(b)'s right front pocket. Officer Mena said, "Oh, condoms. What are you doing with so many condoms?" § 87(2)(b) said that the hospital had given them to him. Officer Mena removed everything from § 87(2)(b)'s pockets, including his wallet, which had been in his back pocket.

While Officer Mena searched § 87(2)(b) Officer Klein searched § 87(2)(b) Officer Klein went into all of § 87(2)(b)'s pockets and removed a knife from what § 87(2)(b) believed was § 87(2)(b)'s right front pocket. The knife was approximately 3 to 4 inches long, although § 87(2)(b) could not see it well. Officer Klein said, "Oh, you can be arrested for that." Officer Klein did not feel the outsides of § 87(2)(b)'s pockets before searching them. Officer Klein may have taken something else out of § 87(2)(b)'s pockets, but § 87(2)(b) was not sure what it was since he was being searched and was not watching § 87(2)(b) the whole time. The officers had not asked for § 87(2)(b)'s or § 87(2)(b)'s identification before searching them.

Officer Mena gave § 87(2)(b) back his wallet, and § 87(2)(b) held it in his hand as he and § 87(2)(b) sat back down. § 87(2)(b) complained to § 87(2)(b) that a person could not sit calmly in the park at any hour. § 87(2)(b) replied that it was true and it was outrageous. The officers heard this, turned around, and said, "Stand up!" or "Get up!"

When § 87(2)(b) stood up, Officer Santana pushed him on the chest using both hands. § 87(2)(b) fell back onto the bench and dropped his wallet. § 87(2)(b) said, "Look, my wallet fell." Officer Santana picked up the wallet and threw it 10 to 20 feet away. Officer Santana said, "Get the fuck out, fucking faggot!" § 87(2)(b) repeated this in English in his CCRB interview and stated that Officer Santana called him a "faggot" twice. Officer Santana also said, "This is a city park!" Officer Santana handcuffed § 87(2)(b) and told § 87(2)(b) to "go over there." § 87(2)(b) walked 10 feet away but was within earshot. Officer Santana said, "You think you know this guy?" or "I don't know how well you know this guy." Officer Santana said, "You know that guy is a homo? He's a homo. Maybe he comes here waiting for a guy to go in the bushes or in the bathroom and do his thing. You got a kid? I don't know if you got a kid or not, but you would like your kid to see what he's doing?" During this, Officer Santana was in front of § 87(2)(b) while Officer Mena was to § 87(2)(b)'s right, and Officer Klein was nearby.

§ 87(2)(b) did not respond. § 87(2)(b) had been trying to look at Officer Santana's badge, and Officer Santana pushed him, seemingly so that § 87(2)(b) would not see. Officer Santana said, "You want to do something? Do something! Get the fuck out of the park." Officer Mena told § 87(2)(b) to get into the car. § 87(2)(b) got into the back. Officer Klein was in the driver's seat. § 87(2)(b) told Officer Klein that the handcuffs were very tight and were hurting him. Officer Klein said, "It's not supposed to be comfortable." Officer Mena and Officer Santana talked outside the car. They went and got § 87(2)(b)'s wallet, from which they removed his identification. Officer Santana made a call on his brown cell phone, not a radio. Officer Santana opened the car door and asked § 87(2)(b) if he had any warrants and what country he was from, and § 87(2)(b) said he did not have any warrants and was from Santo Domingo.

Officer Mena opened the car door, told § 87(2)(b) to move over, and entered the car. After the phone conversation, Officer Santana opened the car door and said, "Come." Officer Mena said to § 87(2)(b) that "he" [Officer Santana] was going to let § 87(2)(b) go, but that § 87(2)(b) was going to have to say he was sorry. § 87(2)(b) asked what he had to say he was sorry for. The officers said that § 87(2)(b) could be arrested for "bad behavior." Both Officer Mena and Officer Santana told § 87(2)(b) "You gonna apologize, or you want to go to jail?" § 87(2)(b) did not respond. Officer Santana said that he was going to let § 87(2)(b) go because he didn't want to ruin his record since § 87(2)(b) had not been arrested before.

Officer Santana removed § 87(2)(b)'s handcuffs, and the officers entered the car and left. Officer Klein was driving, and Officer Mena and Officer Santana were in the back seat. The incident lasted approximately 15 minutes and ended at approximately 11:25 AM. The officers never asked for § 87(2)(b)'s identification. § 87(2)(b) stated that there were a lot of people nearby in the park, but the officers did not stop the others.

§ 87(2)(b) later went to his appointment at § 87(2)(b). Workers in the institution directed him to the CCRB when he told them what had happened. § 87(2)(b) called the CCRB to file this complaint with the assistance of § 87(2)(b).

§ 87(2)(b) did not know the license plate of the officers' car when he initially filed the complaint (he believed it had § 87(2) in it), but when he came to his interview, he stated that he saw the car twice since the incident, with different police inside, and provided the plate as § 87(2)(e), § 87(2)(f).

§ 87(2)(b) stated that he does not make trouble or break the law, but officers still stop him often, although the officers particularly mistreated him in this case. This time, he could not let the stop go and wanted to make a complaint about it. § 87(2)(b) stated that he lives in a poor neighborhood, but there are a lot of honorable people there. § 87(2)(b) was offered mediation but chose investigation. § 87(2)(b) stated that he wanted an investigation because he wanted the officers to be disciplined.

Photo Array

§ 87(2)(b) viewed 12 officer photographs at the CCRB on October 2, 2007 (Encl. 7a-m). The photo array was compiled of all officers assigned to anti-crime and SNEU in the 44th Precinct on the date of the incident. A photograph of Officer Mena was not shown because Officer Mena was not listed as working SNEU; he was assigned to the Range.

§ 87(2)(b) recognized the photograph of Officer Santana as "the one who pushed me and who said everything." He recognized Officer Klein as "possibly the officer who was driving the car and checking Papo." § 87(2)(b) picked out three other officers who looked like the officer who searched him: Officer Brian Kennedy, Officer Steven Eromenok, Jr. (Filler) and Officer Victor Cardona. § 87(2)(b) could not say with certainty that any of these officers was the one who searched him.

§ 87(2)(b) did not recognize Officer Christopher Brady, Officer Joseph Madden, Officer Jose Santiago, Officer Daniel Castro (Filler), Sergeant Danny Diaz, Officer Donald Pirone or Officer Sean Fitzpatrick.

Attempts to Obtain a Signed Medical Release Form

§ 87(2)(b) was not asked to sign a medical release form (HIPPA form) at his in-person interview. On January 4, 2008, a letter was sent to § 87(2)(b) requesting that he sign HIPPA forms so that the CCRB could obtain records from § 87(2)(b), which he visited right after the incident § 87(2)(b).

§ 87(2)(g)
On January 9, 2008, § 87(2)(b) called the CCRB and said he had received the HIPPA forms and would sign and return them as soon as possible. On January 10, 2008, § 87(2)(b) called while § 87(2)(b) was in her office. She explained that § 87(2)(b) was now weary of the CCRB having access to his medical records. The investigator explained to her that the CCRB would only request the records from the date of the incident. § 87(2)(b) agreed to explain this to § 87(2)(b) and she said that he would probably sign and return the HIPPA forms. On January 29, 2008, a letter was sent to § 87(2)(b) asking him to call the CCRB because he had not yet signed and returned the forms. § 87(2)(b) has yet to contact the CCRB. Without the forms, the CCRB cannot request his medical records § 87(2)(g).

§ 87(2)(b)
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§ 87(2)(b)

Results of Investigation

§ 87(2)(b)

§ 87(2)(b) provided a brief phone statement in Spanish on September 5, 2007 (Encl. 9). § 87(2)(b) stated that he and § 87(2)(b) were seated and talking in the park at approximately 11:30 AM on the date of the incident when an unmarked 4-door wine-colored car with three uniformed male police officers approached. One officer was Hispanic, and two officers were white. Of the white officers, one appeared part Asian. § 87(2)(b) believed that the Hispanic officer was on the passenger side of the car, but he was not sure. There were many people in the park, but the police came only to § 87(2)(b) and § 87(2)(b). The police asked them what they were doing, and they said they were not doing anything, just talking. The officers got an attitude; the Hispanic officer was the most aggressive. The Hispanic officer called them "faggots" and pushed § 87(2)(b). § 87(2)(b) threw § 87(2)(b)'s wallet, handcuffed him, and put him in the car. Officers told § 87(2)(b) "You move," and he moved away while § 87(2)(b) was inside the car.

§ 87(2)(b) scheduled an in-person interview at the CCRB for September 7, 2007. He missed his appointment, however, without calling ahead to cancel or reschedule. On September 17, 2007, the undersigned investigator called § 87(2)(b). He said that he missed the appointment because he tried calling § 87(2)(b) for the directions but § 87(2)(b) did not get back to him. § 87(2)(b) asked about the point of the investigation. After the purpose of the investigation was explained to him, § 87(2)(b) decided to withdraw his portion of the complaint because he does not want to think about it any longer and he does not feel that the NYPD are going to change. § 87(2)(b) agreed to sign and return a withdrawal letter to the CCRB. A letter was sent to him on September 17, 2007, but he did not sign and return it.

Officer William Santana's Memo Book (Encl. 10a-b)

Officer Santana had one memo book entry regarding this incident: "0900 UF250 prepared § 87(2)(b)

UF250 Prepared by Officer William Santana (Encl. 11a-c)

It should be noted that the UF250 report and log were requested from the Monitoring Analysis Section (MAS) on August 9, 2007, and were returned to the investigator with no UF250s regarding § 87(2)(b). The computerized log was checked on August 13, 2007 and it had four UF250s on it. However, on October 16, 2007, Officer Santana was interviewed at the CCRB, at which time he brought with him the computerized copy of the UF250 regarding the stop of § 87(2)(b). Subsequently, the report and log were re-requested from MAS on October 16, 2007. The computerized log was checked on November 6, 2007, at which time it had ten entries, including § 87(2)(b)'s. The UF250 report prepared by Officer Santana was entered into the computer by Officer Balbuena on August 14, 2007, § 87(2)(g)

The UF250 report, which was reported by Officer Santana, states that § 87(2)(b) was stopped in an NYC Park at Teller Avenue between East 170th Street and East 171st Street in the Bronx on August 6, 2007 at 9:00 AM. Officer Santana observed § 87(2)(b) for two minutes prior to the stop, and the stop lasted three minutes. The "crime suspected" was criminal sale of a controlled substance. The circumstance leading to stop was "actions indicative of engaging in drug transaction" and an "additional factor" was "area has high incidence of reported offense." § 87(2)(b) was identified by "photo" and his pedigree information and home address are listed. Officer Santana was in uniform and did explain the reason for the stop. No arrest was made, § 87(2)(b) was not searched or frisked, and no weapons or contraband were found. No other persons were stopped. No physical force was used.

Officer William Santana's CCRB Interview (Encl. 12a-b)

Officer William Santana, of the 44th Precinct, was interviewed at the CCRB on October 16, 2007. Officer Santana stated that on August 6, 2007, he worked in uniform from 7:00 AM to 3:35 PM, assigned to the Street Narcotics Enforcement Unit (SNEU) with Officer Robert Klein and Officer Carlos Mena. They were assigned to an unmarked red Impala, department auto # § 87(2)(b). Officer Santana was the driver; one officer was in the front passenger seat and one was in the rear, but Officer Santana could not recall which officer was where.

Officer Santana stated that at approximately 9:00 AM, he and his partners were parked in Claremont Park conducting SNEU operations. Claremont Park spans from 170th Street to Mount Eden Parkway, but Officer Santana could not recall where he and his partners were parked. Claremont Park is known for the sale of crack cocaine and marijuana. Officer Santana stated that his SNEU team conducts only narcotic-related investigations and they do not investigate other types of crimes. From inside the car, Officer Santana and his partners observed two males sitting on a park bench approximately forty to fifty feet away; all of the officers were looking at the males. Officer Santana could not independently recall how long he and his partners were observing the males, but he referred to the UF250 he prepared, which he brought to the interview, and said that it was approximately two minutes. The two males were sitting on the bench conversing. One of the males, whom Officer Santana later learned to be § 87(2)(b) was a dark-skinned Hispanic; the other (identified by the investigation as § 87(2)(b) was also dark-skinned but Officer Santana did not know whether he was Hispanic. Officer Santana did not recognize these two individuals from seeing them in the park or from any prior encounters. § 87(2)(b) passed § 87(2)(b) a small object which Officer Santana and his partners believed was a controlled substance. Officer Santana did not see money being exchanged. Officer Santana stated that the manner in which § 87(2)(b) passed the object was secretive—it looked as if he was trying to cover the object.

Officer Santana and his two partners all exited their car at the same time to approach the males to investigate further. § 87(2)(b) and § 87(2)(b) immediately stood up on their own; none of the officers told them to stand up. Upon approaching the males, Officer Santana saw that the object, which was still in § 87(2)(b)'s hand in plain view, was not a controlled substance. At the time of his CCRB interview, Officer Santana could not recall what the object was. § 87(2)(b) immediately asked the officers why they were there and why they were harassing them. Prior to this, the officers had not engaged in conversation with the males; Officer Santana stated that “it was the mere fact that [the officers] approached them” that caused § 87(2)(b) to become “irate.” § 87(2)(b) immediately asked the officers if he could leave, and the officers said yes because there was no crime committed. The officers did not leave at this point because § 87(2)(b) was engaging them in conversation. Officer Santana explained to § 87(2)(b) that the park has a problem with narcotics sales and that was why the officers were there. § 87(2)(b) complained that the officers were harassing him. At some point, § 87(2)(b) said a word in Spanish (Officer Santana could not recall what that word was) which prompted Officer Santana to speak some in Spanish, but when he realized that § 87(2)(b) spoke English well enough, he continued the conversation in English for Officer Klein’s sake (Officer Klein does not speak Spanish but Officer Mena does). Officer Santana stated that he explained to § 87(2)(b) “why we arrested – I mean why he was being stopped.” Officer Santana requested § 87(2)(b)'s identification because § 87(2)(b) demanded to know why he was stopped and Officer Santana wanted to file a UF250. Officer Santana wrote § 87(2)(b)'s information down (he could not recall whether he wrote it in his memo book or directly on a UF250).

Officer Santana stated that neither he nor his partners: frisked § 87(2)(b), searched § 87(2)(b), requested § 87(2)(b)'s identification, made physical contact with § 87(2)(b), pushed § 87(2)(b), suspected § 87(2)(b) and § 87(2)(b) of soliciting sex in the park, accused § 87(2)(b) and § 87(2)(b) of engaging in a sexual transaction, informed § 87(2)(b) or § 87(2)(b) that they could be arrested, threw § 87(2)(b)'s wallet, called § 87(2)(b) a “faggot” or a “homo,” handcuffed § 87(2)(b) or § 87(2)(b) or told § 87(2)(b) to apologize or he would go to jail. Officer Santana did not recall seeing either § 87(2)(b) or § 87(2)(b) with condoms or a knife. He did not conduct a warrant check on § 87(2)(b)'s name.

Officer Santana stated that he has been assigned to SNEU for approximately two years. He has had long hair since August, 2007, but he could not recall whether he had a moustache at the time of the incident, like he had during his CCRB interview; he shaves it every so often. Officer Santana was shown a photograph of § 87(2)(b) taken at the CCRB, but he did not specifically recognize the man in the photograph. Officer Santana knew § 87(2)(b)'s name by referring to the UF250.

Although the UF250 report states that the incident occurred at Teller Avenue and East 171 Street, Officer Santana stated that he just wrote that location as a cross-reference; the incident did not necessarily occur there.

Officer Carlos Mena's Memo Book (Encl. 13a-b)

Officer Mena has no entries in his memo book regarding this incident.

Officer Carlos Mena's CCRB Interview (Encl. 14a-c)

Officer Carlos Mena was interviewed at the CCRB on October 30, 2007. Officer Mena stated that on August 6, 2007, he worked in uniform from 7:00 AM to 3:35 PM, assigned to SNEU with Officers Santana and Klein. They were assigned to an unmarked red Impala. Officer Mena explained that, although the roll call has him listed as being at the range, he went to the range early in his tour and was working with Officers Klein and Santana at the time of the incident.

Officer Mena stated that at approximately 11:25 AM, he and his partners were driving their vehicle inside Claremont Park (in the middle of the park; he did not know the address) when they observed two males engage in a conversation. Officer Mena could not recall whether the males were already at that location when he started observing them, or whether one came up to the other. Officer Mena was in the front passenger seat, Officer Santana was driving, and Officer Klein was in the rear. Officer Mena was looking out of the front windshield and observed the males engage in a hand-to-hand transaction. Officer Mena initially stated that it looked like the males were exchanging drugs for money, but when asked later whether he saw any money exchange, Officer Mena stated he did not. He stated that the fact that one of the males was handing one small object to the other made it look like a hand-to-hand transaction; he did not know what the object was at the time. Also, the males were looking around "like making sure nobody was around," which looked suspicious to the officers. He could not recall which male handed the object to the other. He did recall that these two males were the only people in the park. Officer Mena was observing the males for less than one minute before the officers decided to approach them, which was immediately after observing the hand-to-hand. Officer Mena believes that each of his partners also observed the hand-to-hand because they all asked each other if they had "seen that," and all of them said yes. The officers made a mutual decision to approach the males.

The officers drove closer to the males to conduct an investigation and exited the car at the same time. Officer Mena could not recall whether the males were sitting, standing or moving around when the officers first approached. Officer Mena described one of the males, the one for whom Officer Santana later wrote a UF250, as a Hispanic male § 87(2)(b) but he could not describe the other. Officer Mena did not independently recall either of their names, but he looked at the UF250 during the interview and agreed that § 87(2)(b) was the male with whom they primarily interacted. (Officer Mena did not recognize a photograph of § 87(2)(b) shown to him during the interview.) Officer Mena did not know the name of the second male, but he will hereafter be referred to as § 87(2)(b)

At first, Officers Santana and Mena started to tell the males why they stopped them. Officer Mena could not recall their exact conversation. Officer Mena could not recall whether, upon approaching the males, he saw the object they had exchanged in plain view, but he stated that "if it was something that had to do with drugs, we [the officers] would have arrested them." Officer Mena explained to the males that the officers were doing an investigation and that they just saw the males acting suspiciously, doing a hand-to-hand. When asked whether he ever inquired about what was in the males' hands, Officer Mena said that when they approached, § 87(2)(b) became so immediately irate that Officer Mena "left it alone." Officer Mena stated during the interview, "The product that was exchanged, I don't even know what it was because we were dealing with this gentleman who was violent." § 87(2)(b) "just became irate, right away." Officer Mena stated that initially, § 87(2)(b) was speaking in Spanish, but that when the officers heard him speak in English, they asked him to speak in English for Officer Klein's sake. Although Officer Mena could not recall § 87(2)(b)'s positioning when the officers approached him, he did recall that § 87(2)(b) was standing up when he was screaming and yelling. Officer Mena could not recall what § 87(2)(b) was saying; he just recalled him "screaming and yelling." He stated that § 87(2)(b) appeared to be "very uncomfortable with the situation," and that "usually people get like that when we approached them if they're exchanging drugs." § 87(2)(b) on the other hand, was "very cooperative" and "very polite." He said, "Ok, officer, I understand what you're doing," and asked if he could leave, and the officers told him he could leave. Officer Mena could not recall at what point during the incident § 87(2)(b) left. The officers never requested identification from § 87(2)(b)

The officers had no physical contact with § 87(2)(b). They only explained the situation (why they were there) to § 87(2)(b) and then Officer Santana requested his identification in order to prepare a UF250. Officer Mena could not recall at what point Officer Santana requested § 87(2)(b)'s identification. § 87(2)(b) did cooperate in providing his identification. None of the officers frisked or searched § 87(2)(b) or § 87(2)(b). None of the officers made physical contact with the males. When asked whether Officer Santana came into possession of § 87(2)(b)'s wallet, Officer Mena said, yes, that § 87(2)(b) gave Officer Santana his wallet when Officer Santana requested § 87(2)(b)'s identification. Officer Mena then corrected himself and said, "I'm sorry, not the wallet, the ID." Officer Mena stated that Officer Santana did not throw any object belonging to § 87(2)(b). Neither Officer Mena nor his partners called the males a "faggot" or a "homo," and none of the officers used the word "fuck" with the males. The officers never handcuffed the males nor had either of them enter their police car. Officer Mena never suspected the males of prostitution. Officer Mena never saw condoms or a knife on the scene. Neither Officer Mena nor his partners informed the males that they could be arrested.

Officer Mena stated that during the incident, Officer Santana and he were both trying to explain the situation and trying to calm § 87(2)(b) down. Officer Klein was behind Officers Mena and Santana, "just standing there." The incident lasted approximately ten to fifteen minutes.

Officer Mena stated that he has made "a lot" of arrests in that park for narcotics, such as crack, cocaine and heroin. Officer Mena had been assigned to SNEU since approximately two months prior to this incident.

Officer Santana prepared a UF250 regarding the stop of § 87(2)(b) sometime that same day, but Officer Mena could not recall when. Officer Mena did not know whether a warrant check was conducted on § 87(2)(b).

Officer Robert Klein's Memo Book (Encl. 15a-b)

Officer Klein had no entries in his memo book regarding this incident.

Officer Robert Klein's CCRB Interview (Encl. 16a-c)

Officer Robert Klein, of the 44th Precinct, was interviewed at the CCRB on January 4, 2008. Officer Klein stated that on August 6, 2007, he worked in uniform from 7:00 AM to 3:35 PM, assigned to the Street Narcotics Enforcement Unit with Officers Santana and Mena in an unmarked red Impala. Officer Klein believes that the CCRB had the incorrect incident date because according to his memo book, he was at the precinct stationhouse at 10:10 AM. Officer Klein could not recall when he resumed patrol and he did not have it noted in his memo book.

Officer Klein prefaced his statement by saying that he was not positive that he recalled the incident under investigation because, working in SNEU, he experiences many "250" situations. He did speak with Officer Santana soon before the interview and Officer Santana jogged his memory about the incident. However, the incident according to Officer Klein's recollection did not resemble the incident, as outlined by the allegations pleaded.

Officer Klein stated that at approximately 11:25 AM, he was in the back seat (passenger side) of the Impala; Officers Mena and Santana were seated in the front, but Officer Klein could not recall who was driving. The officers were patrolling Claremont Park. They did not have an observation post set up. They consistently drive through the park, and the area where they tend to look, near the bathrooms, is a "guaranteed hit" as far as finding drug activity. Officer Klein also mentioned that a lot of prostitution takes place along the park's wooded tree line (known as the "Bronx Brambles") but that SNEU "never deal[s] with any of that stuff."

Officer Santana observed two males engaged in what he believed to be furtive movements or a drug transaction, or "something being tucked somewhere." Since he was seated in the rear, Officer Klein did not see this. Officer Santana made the decision to approach the males. Officer Klein could not recall whether their car was in motion or stopped when Officer Santana observed the males. He noted that the officers "typically cruise through"—they don't usually stop and sit in the car in the park. He did recall that the officers pulled up in their car to approximately 10 feet away from where the males were seated (and

approximately 75 feet east of the bathrooms). Officer Klein noted that not much time passed between when Officer Santana observed the activity and when the officers exited the car: “We pulled up and hopped out.”

When Officer Klein first observed the males, they were “just sitting there.” Neither of the males was acting boisterous. Officer Klein did not recognize the males. During the CCRB interview, Officer Klein was shown a photograph of § 87(2)(b) he did not specifically recognize him. Officer Klein believed the two males stood up when the officers approached. All three of the officers approached the males at the same time, but Officer Klein could not recall how they were positioned. Officer Santana asked the males questions like, “What’s going on? What are you doing here? Where are you coming from?” The males responded something like, “Nothing, nothing.” Officer Klein could not recall the exact conversation. Officer Santana immediately asked the males for identification. This happened “right up front.” One of the males § 87(2)(b) “didn’t want anything to do with it.” § 87(2)(b) said something like, “No, I don’t have ID, I don’t want to give information,” and immediately asked the officers if he could leave, and Officer Santana said he could leave. This was less than a minute after the officers approached. Officer Klein recalled thinking, “That guy’s dirty,” because of how quickly § 87(2)(b) walked away, however, there was no reason for the officers to hold him there, because, according to Officer Klein, Officer Santana had determined that there was no exchange of anything. Officer Klein could not recall how he knew that Officer Santana determined that there was no reason to hold § 87(2)(b). Regarding § 87(2)(b)’s behavior, Officer Klein stated, “He seemed like he was very nervous, but there was nothing to go on other than the fact he wanted to get out of that situation as quick as possible...To that point, there was no cause for concern, no one was upset, it was a decent conversation.”

§ 87(2)(b) “quick-stepped it” out of the park. As soon as he left, the male who remained behind § 87(2)(b) became upset. § 87(2)(b) handed his identification to Officer Santana (Officer Klein could not recall where he retrieved his identification from) and Officer Santana jotted down his information to prepare a UF250. § 87(2)(b) became very loud, like he was trying to make a scene. He was complaining of being tired of police harassment. Officer Santana was trying to calm § 87(2)(b) down verbally (Officer Klein could not recall what Officer Santana was saying). Officer Klein recalled thinking that § 87(2)(b) was emotionally disturbed and that the officers should leave as quickly as possible. A crowd did not gather. The entire incident lasted less than two minutes. Officer Klein could not recall when Officer Santana prepared the UF250.

Officer Klein stated that he never suspected the males of soliciting sex or of prostitution; that had no bearing on this stop and it is nothing SNEU would get involved in. Officer Klein did not specifically recall seeing packaged condoms or a knife during the incident. He could not recall seeing any objects in either of the male’s hands. He did not observe any suspicious bulges on their persons. Officer Santana did take possession of § 87(2)(b)’s identification, but Officer Klein could not recall whether Officer Santana ever had possession of § 87(2)(b)’s wallet. Neither Officer Klein nor his partners said the following: “Get the fuck out of the park,” the word “faggot,” inform the males that they could be arrested, or give them the option of either apologizing or going to jail. He stated that there was nothing the males could have been arrested for. He furthermore stated that he has never used the word “faggot” in police work or in his family life. Neither Officer Klein nor his partners made any physical contact whatsoever with the males. Neither Officer Klein nor his partners frisked, searched or handcuffed the males. Neither of the males entered their police car. Officer Klein could not recall asking any questions of the males, but he “might have.” English was spoken for the entire incident. Officer Klein does not speak Spanish.

Officer Klein has been a police officer for three years; he has been assigned to SNEU since May of 2007. He has worked with Officers Santana and Mena fairly frequently as a part of their precinct’s SNEU team. Officer Klein stated that he discussed this case with Officer Santana right before the interview because he wanted Officer Santana to jog his memory; he did not collude with Officer Santana and fabricate any part of his testimony.

During his CCRB interview, Officer Klein stated that these “nonsense allegations” “enrage” him because, as a SNEU officer, “you have non-stop repeat customers” and so “you have to be a super nice guy” in order to develop a relationship with those people so that they will cooperate. He stated that “you couldn’t

possibly operate with the strategy and the allegations that are outlined in this complaint,” and that if he operated with that strategy, he would have more CCRB complaints on his record. He further stated that, if he did not “have two kids and a wife, and I made better money, I would sue this guy § 87(2)(b) for defamation of character.”

Roll Call (Encl. 18a-b)

Officers Santana and Klein were assigned to SNEU on the date of incident. Officer Mena was assigned to the Range.

Computer Copy of the UF250 (Encl. 11a-c)

The details of the UF250 report can be found immediately before Officer Santana’s interview summary in this report.

Handwritten UF250 (Encl. 23k)

A request to the 44th Precinct for a copy of the handwritten UF250 report was returned to the CCRB with a note stating that none was on file.

License/Warrant Checks

Requests were sent to the NYPD Management Information Systems Division (MISD) and the New York State Police for any records of license/warrant checks for § 87(2)(b) s name on the date of incident. No records were found.

Civilian Conviction History (Encl. 20)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History (Encl. 4)

§ 87(2)(b) has not filed any other complaints with the CCRB.

Subject Officer CCRB History (Encl. 1-3)

In their respective 5-, 9- and 3-year tenures, Officer Santana, Officer Mena and Officer Klein have not had any CCRB allegations substantiated against them.

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) identified Officer Santana and Officer Klein in photo arrays. Additionally, Officer Santana had long hair at the time of the incident and at the time of his CCRB interview. Officer Klein was the only white officer involved in the incident. Subsequently, Officer Mena was identified by Officers Santana in his CCRB interview.

§ 87(2)(b) recalled where the officers were positioned in their car, but his recollection differed from that of the officers. § 87(2)(b) stated that Officer Klein was driving and Officers Mena and Santana were in the back seat. Officer Santana stated that he was the driver, while either Officer Mena or Officer Klein was in the front passenger seat, the other in the back. Officer Mena stated that he was in the front passenger seat, Officer Santana was driving, and Officer Klein was in the back seat. Officer Klein stated that he was in the back seat and his two partners were in the front, but he could not recall who was driving. It seems likely that Officer Santana was driving, Officer Mena was in the front passenger seat and Officer Klein was in the rear. This contradicts what § 87(2)(b) s statement and calls into question his identity of the officers based on their seat assignments. Nonetheless, § 87(2)(b) did identify Officers Santana and Klein in his photo array. The officers each look different (one being white and two being Hispanic, one with a ponytail) and therefore, his identifications of the officers are based on his photo array and his detailed descriptions of them.

Undisputed Facts

It is undisputed that § 87(2)(b) and § 87(2)(b) were sitting in Claremont Park on August 6, 2007 at approximately 11:10 to 11:25 AM. It is also undisputed that Officers Santana, Mena and Klein approached them and that a conversation ensued. § 87(2)(b) left before § 87(2)(b) and the officers had finished interacting. Officer Santana somehow obtained § 87(2)(b)'s identification and prepared a UF250 report regarding the incident.

Facts in Dispute

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] Officer Santana stated that he and his partners were all observing § 87(2)(b) and § 87(2)(b) for two minutes prior to the stop while the officers' vehicle was stationary in the park, whereas Officer Mena stated that the three officers were driving through the park and observed § 87(2)(b) and § 87(2)(b) for one minute prior to the stop. Officer Klein, conversely, said that he himself did not see the alleged suspicious activity and that the stop happened very quickly—the officers drove up to the males and got out of the car.

§ 87(2)(g) [REDACTED] § 87(2)(b) acknowledged that after the officers searched him, he and § 87(2)(b) were complaining about the officers' actions, which led Officer Santana to turn around and push § 87(2)(b). Officer Santana claimed that when he first approached § 87(2)(b) he immediately saw that the alleged "controlled substance" was an innocuous object, but that the officers remained on the scene only because § 87(2)(b) became irate. He stated that prior to § 87(2)(b) getting upset, the officers had not said a word to the males. Officer Mena stated that the officers first approached and immediately started to explain why they were stopping the males, and that § 87(2)(b) became upset. Officer Klein stated that Officer Santana asked § 87(2)(b) and § 87(2)(b) common-law inquiries questions and then requested to see identification. According to Officer Klein, only after § 87(2)(b) provided his identification and after § 87(2)(b) left, did § 87(2)(b) become irate.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Assessment of the Evidence

§ 87(2)(b) filed the complaint immediately following the incident, § 87(2)(g) [REDACTED]. He was not arrested or issued a summons during the incident. He acknowledged that he became angry and made comments about the officers, but claimed that his anger was a direct result of the officers searching him and § 87(2)(b) § 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED] he stated that Officer Mena searched him and found four condoms in his pocket and that Officer Klein searched § 87(2)(b) and found a small knife. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A) Abuse of Authority: Officer William Santana stopped § 87(2)(b) **and** § 87(2)(b)
Allegation B) Abuse of Authority: Officer Robert Klein stopped § 87(2)(b) **and** § 87(2)(b)
Allegation C) Abuse of Authority: Officer Carlos Mena stopped § 87(2)(b) **and** § 87(2)(b)
Allegation D) Abuse of Authority: Officer Carlos Mena searched § 87(2)(b)
Allegation E) Abuse of Authority: Officer Robert Klein searched § 87(2)(b)

§ 87(2)(g)

Officers Santana and Mena stated that it was all three of the officers who observed the alleged suspicious activity that led to the stop. Additionally, § 87(2)(b) alleged that all three officers participated. § 87(2)(g)

§ 87(2)(g)

Officers Mena and Santana claimed that the officers approached § 87(2)(b) and § 87(2)(b) because they observed the males engaging in what they believed to be a hand-to-hand transaction based on the fact that one of the males handed a small object to the other in a furtive way. § 87(2)(g)

It is therefore recommended that allegations A through E be Unsubstantiated.

Allegation F) Force: Officer William Santana used physical force against § 87(2)(b)
Allegation G) Discourtesy: Officer William Santana acted rudely toward § 87(2)(b)
Allegation H) Offensive Language: Officer William Santana made remarks to § 87(2)(b) **based upon the sexual orientation of** § 87(2)(b) **and** § 87(2)(b)
Allegation I) Discourtesy: Officer William Santana spoke obscenely to § 87(2)(b)
Allegation J) Abuse of Authority: Officer William Santana threatened to arrest § 87(2)(b)
Allegation K) Abuse of Authority: Officer Carlos Mena threatened to arrest § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that allegations F through K be Unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: